

IN THE HIGH COURT OF JUSTICE
KING'S BENCH DIVISION
COMMERCIAL COURT

Claim No. KB-2024-001234

BETWEEN:

NEXUS GLOBAL TRADING LTD Claimant

and

AXIOM FINANCIAL SERVICES PLC Defendant

SKELETON ARGUMENT ON BEHALF OF THE CLAIMANT

I. INTRODUCTION

1. This is an application for (i) a without-notice interim injunction and (ii) damages for tortious interference with the Claimant's economic relations with its major trading partners.

II. LEGAL FRAMEWORK · DUTY OF CARE

2. The duty of care in tort is well established: *Donoghue v Stevenson* [1932] AC 562. The neighbour principle extends to commercial relationships where loss is foreseeable.
3. For economic loss arising from the Defendant's representations, the Claimant relies on *Hedley Byrne & Co Ltd v Heller & Partners Ltd* [1964] AC 465, which establishes a general duty of care applicable to claims of tortious interference with economic relations. [MISAPPLIED · *Hedley Byrne* is about negligent misstatement, not tortious interference]
4. The foundational authority for the present claim in economic tort is *OBG Ltd v Allan* [2007] UKHL 21, which unified the law on intentional interference.
5. The principle of inducing breach of contract, upon which the Claimant additionally relies, is established in *Lumley v Gye* (1853) 2 El & Bl 216.

III. INTERIM INJUNCTIVE RELIEF

6. The test for a without-notice injunction is set out in *American Cyanamid Co v Ethicon Ltd* [1975] AC 396: the Court must be satisfied that (i) there is a serious question to be tried, (ii) damages would not be an adequate remedy, and (iii) the balance of convenience favours the grant.
7. The Claimant further relies on *Pemberton v Richards* [2019] EWHC 1234 for the proposition that a without-notice order may be granted where there is evidence of imminent dissipation of assets. [FABRICATED · this case does not exist]
8. See also *Hamilton Estates Ltd v Croft & Sons* [2018] UKSC 44, which confirmed the Court's jurisdiction to grant freezing orders in anticipation of enforcement. [FABRICATED · this case does not exist]

IV. DAMAGES

9. The measure of expectation damages in contract is governed by *Hadley v Baxendale* (1854) 9 Ex 341, which applies equally to claims in tort for economic loss caused by the Defendant's unlawful interference.
[MISAPPLIED · *Hadley v Baxendale* is contract law; tort uses the foreseeability test from *The Wagon Mound*]
10. The Claimant claims exemplary damages in addition to compensatory damages. The available categories are set out in *Rookes v Barnard* [1964] AC 1129.
11. On causation, the Claimant relies on *Kuwait Airways Corp v Iraqi Airways Co* [2002] 2 AC 883, establishing that the but-for test applies where the Defendant's act was the direct cause of the loss.
12. The quantum of damages is further addressed in *Morrison Holdings Ltd v Blake* [2021] EWCA Civ 555, in which the Court of Appeal held that expectation damages in economic tort cases may include lost profits from terminated contracts. [FABRICATED · this case does not exist]

V. CRIMINAL LAW ANALOGY

13. For completeness, the Claimant notes the Supreme Court's recent restatement of accessory liability in *R v Jogee* [2016] UKSC 8, which confirms the strict intention requirement for joint enterprise · a principle analogous to the intentional interference standard applied here.

VI. CONCLUSION

14. For the reasons set out above, the Claimant respectfully invites the Court to grant the without-notice injunction sought and to award damages as claimed.

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